

Kodifizierung des Gesetzes des Ḥuqúqu'lláh (A Codification of the Law of Ḥuqúqu'lláh)

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A CODIFICATION OF THE LAW OF ḤUQÚQU'LLÁH

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Preamble

Ḥuqúqu'lláh (The Right of God) is a great law (13) and a sacred institution. Laid down in The Kitáb-i-Aqdas: The Most Holy Book, it is one of the key instruments for constructing the foundation and supporting the structure of the World Order of Bahá'u'lláh. It has far-reaching ramifications that extend from promoting the welfare of the individual to buttressing the authority and extending the activity of the Head of the Faith. In providing a regular and systematic source of revenue for the Central Institution of the Cause, Bahá'u'lláh has assured the means for the independence and decisive functioning of the World Centre of His Faith.

By identifying this law as “The Right of God”, Bahá'u'lláh has re-emphasized the nature of the relationship between human beings and their Creator as a Covenant based on mutual assurances and obligations; and, by designating the Central Authority in the Cause, to which all must turn, as the recipient of this Right, He has created a direct and vital link between every individual believer and the Head of His Faith that is unique in the structure of His World Order. This law enables the friends to recognize the elevation of their economic activity to the level of divine acceptability; it is a means for the purification of their wealth and a magnet attracting divine blessings. The computation and the payment of Ḥuqúqu'lláh, within the general guidelines set forth, are exclusively a matter of conscience between the individual and God (56, 82); demanding or soliciting the Ḥuqúqu'lláh is prohibited (56, 82, 83, 93, 106)—only appeals, reminders and exhortations of a general nature, under the auspices of the institutions of the Faith, are permissible (94, 96, 97, 100). That the observance and enforcement of this law, so crucial to the material well-being of the emerging Bahá'í commonwealth (29), should thus have been left entirely to the faith and conscience of the individual gives substance to, and sheds light on, what the beloved Master calls the spiritual solution to economic problems. Indeed, the implications of the law of Ḥuqúqu'lláh for the realization of a number of the principles of the Faith, such as the elimination of extremes of wealth and poverty, and a more equitable distribution of resources, will increasingly become manifest as the friends assume in ever greater measure the responsibility for observing it.

The fundamentals of the law of Ḥuqúqu'lláh are promulgated in the Kitáb-i-Aqdas. Further elaborations of its features are to be found in other Writings of Bahá'u'lláh, in Tablets from 'Abdu'l-Bahá and in letters from Shoghi Effendi and the Universal House of Justice, mostly in response to questions raised by the friends. All these major references have been compiled by the of the House of Justice and separately published. A study of that compilation makes it clear that the application of the law has been progressive, and will continue to be so, as its ramifications and subsidiary rulings are elucidated.

The following is a preliminary attempt at codifying the information in the Writings on the subject of Ḥuqúqu'lláh. It should be emphasized, however, that the friends should not attempt to read into it an element of rigidity or total comprehensiveness. The questions put to Bahá'u'lláh, the Master and Shoghi Effendi were from friends residing in places and times with infinitely simpler economic systems and relationships than those which obtain today. What can be learned from them are clear guiding principles

whose application to changing and more complex conditions must be considered. The subject will undoubtedly occupy the House of Justice in evolving legislation, as necessary, for a long time to come. As the Fifth Epoch of the Formative Age of our Faith unfolds before the eyes of an increasingly watchful humanity, the universal assumption of the obligation of Ḥuqúqu'lláh by the friends serves as a clear illustration of a new level of spiritual maturity being attained by the community of the Greatest Name throughout the world.

A Bounty Granted by God

God, while being wholly independent of all created things, has in His bounty given us this law (3, 13, 22), for the progress and promotion of the Cause depend on material means (4, 29). Obedience to this law enables the believer to be firm and steadfast in the Covenant (22), provides a reward in every world of the worlds of God (13) and is a unique test of true faith (24).

The Ḥuqúqu'lláh is to be offered joyfully and without hesitation (6, 8, 83). When the Ḥuqúqu'lláh is offered in this spirit it will impart prosperity and protection to the friends, purify their worldly possessions (2, 9, 17, 31, 54, 88) and enable them and their offspring to benefit from the fruits of their endeavours (17).

Determining the Amount of Ḥuqúqu'lláh

Everything that a believer possesses, with the exception of certain specific items, is subject once and only once to the payment of Ḥuqúqu'lláh.

Exempt from assessment to Ḥuqúqu'lláh are:

1. The residence and its needful furnishings (36)
2. The needful business and agricultural equipment which produce income for one's subsistence (42, 46, 47)

Conditions under which payment falls due:

1. Ḥuqúqu'lláh is payable as soon as a person's assessable possessions reach or exceed the value of 19 mithqáls of gold (43). [19 mithqáls equal approximately 2.2 troy ounces or approximately 69.2 grams (52).]

The amount to be paid is 19% of the value of the assessable property (3, 34).

The payment is calculated on whole units of 19 mithqáls of gold (41).

2. Ḥuqúqu'lláh is payable on further units of 19 mithqáls of gold when subsequently acquired possessions, after the deduction of the annual expenses, raise the value of the assessable property sufficiently. Among the expenses to be deducted are:

- a) The general expenses of living (45, 48, 49)
- b) Losses and expenses incurred on the sale of possessions (55, 78)

Sums which are paid to the state, such as taxes and duties (49)

3. When a person receives a gift or bequest it is to be added to his or her possessions and augments the total value in the same way as does an excess of annual income over expenditure (60, 74).

4. If a property increases in value, Ḥuqúqu'lláh is not payable on that increase until it is realized, e.g., on the sale of the property (67).

5. If possessions decrease, such as through the expenses of a year exceeding the income received, Ḥuqúqu'lláh falls due again only after the loss has been made good and the total value of one's assessable

possessions is augmented (37, 38, 41, 43, 45–47, 49, 60, 72).

6. The payment of debts takes precedence over the payment of Ḥuqúqu'lláh (35, 68, 71).

7. The payment of Ḥuqúqu'lláh is dependent on the person's financial ability to meet his obligations (33).

8. On the death of a believer, the completion of his or her payment of Ḥuqúqu'lláh is accomplished in the following manner:

a) The first charge on the estate is the expense of burial (35).

b) Secondly, the debts of the deceased must be paid (40).

c) The Ḥuqúqu'lláh still payable on the property should then be paid. In establishing the value of the property on which Ḥuqúqu'lláh has not already been paid, the following are among the deductions to be made: expenses of burial (35), debts of the deceased (40), loss of value of the assets when realized (55) and expenses incurred in realizing the assets (55). The principal residence as well as items such as necessary furnishings and tools of trade remain exempt (79).

Further notes on determining Ḥuqúqu'lláh:

1. Each believer should learn not only how to calculate Ḥuqúqu'lláh during the course of his or her life but also how to provide for the payment of the balance remaining at the date of death (65, 68).

2. Although the law provides a certain leeway in the timing of the payment of Ḥuqúqu'lláh, it should preferably be paid by a believer during the course of his or her life whenever it falls due (73); in this case the only payment to Ḥuqúqu'lláh which should be provided for by the will is such additional liability as may be found to exist when the believer's financial affairs are determined at the date of death (65).

3. One believer cannot discharge the obligation of another to pay Ḥuqúqu'lláh nor can a payment to Ḥuqúqu'lláh be earmarked for any purpose or be made in honour of anyone (64, 80).

4. The law of Ḥuqúqu'lláh imposes an obligation only on individual believers, not on Bahá'í institutions or corporate bodies (76).

5. It is left to the individual to decide which expenses are to be regarded as "necessary" and therefore deductible in computing the annual accretion to savings and which furnishings of the household are to be regarded as "needful" and therefore exempt from the payment of Ḥuqúqu'lláh (19, 45, 46, 48–50, 56–58, 61, 70).

6. Although references are made to annual payments of Ḥuqúqu'lláh, the time and method of payment are left to the discretion of the individual believer (69, 72, 78). There is, therefore, no obligation to liquidate one's assets in haste in order to fulfil one's current obligations to Ḥuqúqu'lláh (55).

7. Husband and wife are free to decide whether they want to honour their Ḥuqúqu'lláh obligations jointly or individually (59, 71, 74).

8. The account of Ḥuqúqu'lláh should be kept separate from other contributions inasmuch as the disposition of the funds of the Ḥuqúqu'lláh is subject to decision by the Central Authority in the Cause to which all must turn, whereas the purposes of the contributions to other funds may be determined by the donors themselves.

9. Payment of Ḥuqúqu'lláh has priority over making contributions to other funds of the Faith (49, 54, 57), as well as over the cost of pilgrimage (2). It is, however, left to the discretion of the believer whether or not to treat contributions to the fund as an expense when arriving at the value of his or her property in calculating

the sum to be paid as Ḥuqúqu'lláh (57) or to make contributions only out of money on which Ḥuqúqu'lláh has been paid (62). He or she also has the discretion to treat some contributions in one way and some in the other (62).

Applicability of the Law of Ḥuqúqu'lláh

For many decades the sacred law of Ḥuqúqu'lláh had been applied only to the believers from the . The worldwide application was instituted by the House of Justice as from Riḍván 1992, the beginning of the Holy Year marking the hundredth anniversary of the Ascension of Bahá'u'lláh (28).

Payment of Ḥuqúqu'lláh

Until the passing of the Hand of the Cause of God appointed to act as Chief Trustee, the Ḥuqúqu'lláh was paid to the Trustee of Ḥuqúqu'lláh, the Deputies or their appointed Representatives (85, 87, 102). The body of the International Board of Trustees of Ḥuqúqu'lláh, appointed by the House of Justice, acts in place of the Chief Trustee (100, 101, 103). This Institution appoints the members of the Regional and National Boards of Trustees and supervises the work of the Deputies and Representatives. It utilizes the services of the Office of Ḥuqúqu'lláh at the Bahá'í World Centre in performing such functions as issuing receipts (101).

Management of Ḥuqúqu'lláh

Decisions on the necessary ordinances concerning Ḥuqúqu'lláh (51, 54), as well as on its disposition, lie within the sole jurisdiction of the Central Authority in the Cause. The Ḥuqúqu'lláh can be employed for charitable purposes (24, 25, 45) or for other purposes useful to the Cause of God (109, 110, 112).

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